

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #06	CCRB Case #: 202006887	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/04/2020 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 47		
Date/Time CV Reported Fri, 10/16/2020 10:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/16/2020 10:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Silverio	5916	943816	WARRSEC
2. DT3 Paul Hoppinthal	03712	960678	WARRSEC
3. DT3 Christopher Heredia	01339	938656	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio damaged § 87(2)(b)'s property.	A . Unsubstantiated
B . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio entered § 87(2)(b) in the Bronx.	B . Exonerated
C . DT3 Paul Hoppinthal	Abuse: Detective Paul Hoppinthal entered § 87(2)(b) in the Bronx.	C . Exonerated
D . DT3 Christopher Heredia	Abuse: Detective Christopher Heredia entered § 87(2)(b) in the Bronx.	D . Exonerated
E . DT3 Christopher Heredia	Abuse: Detective Christopher Heredia detained § 87(2)(b)	E . Unsubstantiated
F . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio searched § 87(2)(b) in the Bronx.	F . Unsubstantiated
G . DT3 Paul Hoppinthal	Abuse: Detective Paul Hoppinthal searched § 87(2)(b) in the Bronx.	G . Unsubstantiated
H . DT3 Christopher Heredia	Abuse: Detective Christopher Heredia searched § 87(2)(b) in the Bronx.	H . Unsubstantiated
I . DT3 Paul Hoppinthal	Abuse: Detective Paul Hoppinthal damaged § 87(2)(b)'s property.	I . Unsubstantiated

Case Summary

On October 16, 2020, § 87(2)(b) filed this complaint with the CCRB over the phone on behalf of herself, her boyfriend, § 87(2)(b) and § 87(2)(b)'s sister, § 87(2)(b).

On September 4, 2020, at 6:00 a.m., § 87(2)(b) and § 87(2)(b) were sleeping in § 87(2)(b)'s room, located at § 87(2)(b) in the Bronx, when they woke up to knocking on the door. § 87(2)(b) and § 87(2)(b) went to the front door. Det. Daniel Silverio of the Warrant Squad damaged § 87(2)(b)'s front door (**Allegation A – Abuse of Authority: unsubstantiated**). § 87(2)(b) opened the front door and Det. Silverio along with Parole Officer Allen and Det. Paul Hoppinthal, and Det. Christopher Heredia of the Warrant Squad entered the apartment (**Allegations B, C and D – Abuse of Authority: exonerated**). Once inside, Det. Heredia placed § 87(2)(b) in handcuffs (**Allegation E – Abuse of Authority: unsubstantiated**). § 87(2)(b) was only wearing a towel, which began to fall, and Det. Heredia refused § 87(2)(b) an opportunity to change (**Allegation F – Discourtesy: unsubstantiated**). After § 87(2)(b) was in custody, Det. Silverio, Det. Hoppinthal, and Det. Heredia searched the apartment (**Allegations G, H, I – Abuse of Authority: unsubstantiated**). Det. Hoppinthal used a butter knife to open a locked bedroom, damaging the door (**Allegation J – Abuse of Authority: unsubstantiated**). § 87(2)(b) was arrested regarding § 87(2)(b), § 87(2)(b), § 86(1)(3)&(4), § 87(2)(c).

There is no video in this case as Warrant Squad officers were not assigned BWCs at the time of this incident. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Daniel Silverio damaged § 87(2)(b)'s property.

Allegation B – Abuse of Authority: Detective Daniel Silverio entered § 87(2)(b) in the Bronx.

Allegation C – Abuse of Authority: Detective Paul Hoppinthal entered § 87(2)(b) in the Bronx.

Allegation D – Abuse of Authority: Detective Christopher Heredia entered § 87(2)(b) in the Bronx.

§ 87(2)(b) testified that on September 4, 2020, she was staying at § 87(2)(b)'s room that he rented from § 87(2)(b), § 87(2)(b) and § 87(2)(b) were awoken by knocking on the front door. § 87(2)(b) put on a t-shirt and wrapped a towel around her waist but was not clothed otherwise, and she and § 87(2)(b) went to the front door. Officers were in the hallway and had knocked the peephole out of the front door. § 87(2)(b) and § 87(2)(b) made eye contact with the officers, who told them to open the door. The officers had not said anything while knocking on the door and did not identify themselves as police. Together, § 87(2)(b) and § 87(2)(b) opened the front door wide, allowing the officers to see both § 87(2)(b) and § 87(2)(b) standing side by side in the doorway. The officers entered the apartment immediately and did not speak as they did so. The officers did not ask for consent to enter (**Board Review 01**).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

and § 87(2)(b) were sleeping in a room he rented from § 87(2)(b) when he woke up to banging on the door. § 87(2)(b) got out of bed and went to the door. § 87(2)(b) saw the peephole fly off the door and onto the floor and Det. Silverio was looking in through the hole. § 87(2)(b) asked the officers who they were looking for – Det. Silverio replied that they would tell him after he opened the door. § 87(2)(b) told the officers to hold on as he wanted § 87(2)(b) to get dressed. The officer

told § 87(2)(b) to open the door immediately and said that they had a warrant. § 87(2)(b) opened the door and the parole officer, Parole Officer Allen, Det. Silverio, Det. Hoppinthal, and Det. Heredia entered **(Board Review 02)**.

§ 87(2)(b) testified that neither she nor her children were home during this incident. Upon returning home § 87(2)(b) saw that the peephole of her front door was knocked out and the door was dented. § 87(2)(b) called NYCHA but they never came to repair the damage **(Board Review 03, 04)**.

Det. Silverio testified that in 2019 he was assigned to Joint Apprehension Warrant Squad (JAWS) and was investigating § 87(2)(b) who was on the run from a § 87(2)(b). Det. Silverio got into a car accident and was out of work for four months, and the case was reassigned and closed pending further investigation. A few days prior to this incident, Parole Officer Allen, who had been working on the case, called Det. Silverio and stated that he got a reliable tip from another parolee who provided an address of where § 87(2)(b) was staying. Det. Silverio met with Parole Officer Allen prior to the incident and created an informal tac plan. The plan was not documented anywhere. Det. § 87(2)(b) looked up the location in a database called WISE which showed that the apartment was occupied by a woman named § 87(2)(b) and her boyfriend, who was in the same gang as § 87(2)(b) § 87(2)(b).

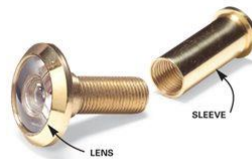
On September 4, 2020, at approximately 6 a.m., Det. Silverio went to § 87(2)(b)'s apartment with Parole Officer Allen, Det. Heredia, and Det. Hoppinthal. Upon arriving at the apartment Det. Silverio knocked on the door. Det. Silverio heard movement inside of the apartment. A woman, Det. Silverio later identified as § 87(2)(b) spoke through the door, and asked the officers why they were there. Det. Silverio stated that they had a warrant and asked § 87(2)(b) to open the door. Det. Silverio heard § 87(2)(b) speaking to a third party but did not hear the third party speak. § 87(2)(b) told the third party that there were cops at the door. Det. Silverio unscrewed the peephole. The peephole's outer lens unthreaded, and then PO Silverio pushed the remaining cylinder into the apartment and out of the door. The peephole was not damaged. After the peephole was removed Det. Silverio looked through the door and saw § 87(2)(b) standing in the hallway. Det. Silverio recognized § 87(2)(b) from several mugshots that he had in the case file which showed that § 87(2)(b) had tattoos on his neck. Det. Silverio told § 87(2)(b) that if she did not open the door that they would take the door down. Det. Silverio made the statement to encourage § 87(2)(b) to voluntarily comply, which she did. After § 87(2)(b) opened the door the officers entered the apartment **(Board Review 05)**.

Det. Hoppinthal's statement was consistent with Det. Silverio's statement **(Board Review 06)**.

Det. Heredia did not recall how the officers gained entry into the apartment, but stated that it is common for warrant officers to remove peepholes if they reasonably believe that the suspect is inside **(Board Review 07)**.

Parole Officer Allen retired from service and thus was unavailable to the investigation **(Board Review 08)**.

According to a diagram found on FamilyHandyMan.com, a standard peephole has internal threads that clamp both sides of the peephole to the door **(Board Review 09)**.



The arrest warrant for § 87(2)(b) was requested by Det. Jorge Pedroza of the 34th Precinct Detective Squad and was issued on § 87(2)(b). The warrant listed § 87(2)(b)'s address as § 87(2)(b) in Manhattan. § 87(2)(b) was wanted for murder (**Board Review 10**).

The parole warrant was issued on § 87(2)(b) and does not list an address for § 87(2)(b) (**Board Review 19**).

A NYCHA repair order from September 24, 2020 shows that repairs were made to the apartment's front door hinge and latch. The repair order does not mention any damage to the peephole (**Board Review 11**).

The DD5s show that in 2019, Det. Silverio was working with Parole Officer Allen to locate § 87(2)(b). On October 29, 2019, the case was closed pending further investigation. On September 4, 2020, the case was reopened by Det. Hoppinthal due to new information provided by Parole Officer Allen who received information that § 87(2)(b) was residing at § 87(2)(b) in the Bronx. The DD5 noted that § 87(2)(b) opened the door and § 87(2)(b) was apprehended without incident (**Board Review 12**).

An arrest warrant founded on probable cause carries with it the limited authority to enter a dwelling in which the suspect lives and where there is reason to believe that the suspect is within Payton v. New York, 445 U.S. 573 (1980) (**Board Review 13**). If there is a reasonable belief that the suspect is present and admittance is not allowed after the required notice is given, forcible entry is permitted. People v. Paige, 77 A.D.3d 1193 (2010) (**Board Review 14**).

§ 87(2)(b) and § 87(2)(b) both testified that § 87(2)(b) was inside of his room, where he resided, when officers banged on the door and removed the peephole. § 87(2)(b) and § 87(2)(b) all alleged that the front door was damaged as the officers knocked out the peephole. Additionally, § 87(2)(b) testified that the officers dented her front door before ultimately entering the apartment. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Det. Silverio testified that he unthreaded the peephole to obtain a vantage point into the apartment for safety and that the door was not damaged in any way. Once § 87(2)(b) opened the door the officers entered the apartment to place § 87(2)(b) in custody.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B, C, and D** be closed as **exonerated**.

Allegation E – Abuse of Authority: Detective Christopher Heredia detained § 87(2)(b)

Allegation F – Discourtesy: Detective Christopher Heredia acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) testified that upon entering the apartment, Det. Heredia immediately placed § 87(2)(b) against the wall between the front door and the kitchen and placed § 87(2)(b) in handcuffs. She believed that Det. Allen handcuffed § 87(2)(b) and pushed him against the wall as well. § 87(2)(b) was only wearing a towel around her waist and the towel began to fall. § 87(2)(b) asked if she could be uncuffed to make sure her towel did not fall and expose her to the officers. Det. Heredia did not respond. Ultimately, § 87(2)(b) stood in front of § 87(2)(b) and held the towel with his cuffed hands (**Board Review 01**).

§ 87(2)(b) testified that § 87(2)(b) was holding her towel up behind her waist while in handcuffs. The towel started to fall exposing § 87(2)(b)'s privates and § 87(2)(b) stood in front of § 87(2)(b) to give her privacy. § 87(2)(b) pulled up the towel while in handcuffs immediately (**Board Review 02**).

Det. Heredia testified that he did not recall § 87(2)(b) being handcuffed or wearing a towel. He did not recall § 87(2)(b)'s towel falling, her privates becoming exposed, nor did he recall either § 87(2)(b) or § 87(2)(b) asking for § 87(2)(b) to have an opportunity to change (**Board Review 07**).

Both Det. Silverio and det. Hoppinthal denied that § 87(2)(b)'s towel fell and exposed her private areas. Neither officer recalled § 87(2)(b) wearing a towel, and both officers denied that § 87(2)(b) was handcuffed. The officers stated that § 87(2)(b) was not detained as they were not looking for her. Officers only handcuff third-party occupants if they are seen as a safety risk or if they are interfering, neither of which was true for § 87(2)(b) (**Board Review 05, 06**).

Both § 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) was handcuffed upon the officers entering into the apartment and that while handcuffed, her towel began to fall momentarily exposing her privates. Both alleged that they asked Det. Heredia for § 87(2)(b) to have an opportunity to change and that Det. Heredia did not allow § 87(2)(b) to change. Det. Heredia did not recall § 87(2)(b) being handcuffed, her towel falling, or being asked for § 87(2)(b) to change. Det. Silverio and Det. Hoppinthal both denied that § 87(2)(b) was handcuffed and stated that there was no reason to detain her as she was calm and they were not looking for her. Both officers testified that they did not recall § 87(2)(b) wearing a towel, the towel falling, or anyone asking permission for § 87(2)(b) to change. § 87(2)(g)

Given the above, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: Detective Daniel Silverio searched § 87(2)(b)

§ 87(2)(b) in the Bronx.

Allegation H - Abuse of Authority: Detective Paul Hoppinthal searched § 87(2)(b).

§ 87(2)(b) in the Bronx.

Allegation I – Abuse of Authority: Detective Christopher Heredia searched § 87(2)(b).

§ 87(2)(b) in the Bronx.

Allegation J – Abuse of Authority: Detective Paul Hoppinthal damaged § 87(2)(b) s
property.

§ 87(2)(b) testified that Det. Heredia stood with § 87(2)(b) and § 87(2)(b) near the front door while Parole Officer Allen, Det. Silverio, and Det. Hoppinthal searched the apartment for 30 minutes. § 87(2)(b) watched them open closets by the kitchen and hallway and enter § 87(2)(b)'s bedroom and the § 87(2)(b)'s children's bedroom. Parole Officer Allen and Det. Hoppinthal asked § 87(2)(b) if he had a key for § 87(2)(b)'s room, but he did not. Parole Officer Allen and Det. Hoppinthal used a butter knife to unlock the last bedroom. After 30 minutes, Det. Allen approached § 87(2)(b) and asked if she owned the apartment. § 87(2)(b) said that she did not. Parole Officer Allen and Det. Silverio continued searching the apartment for another 30 minutes. Det. Allen returned and asked § 87(2)(b) for his name, which § 87(2)(b) provided, and Det. Allen said that § 87(2)(b) had a parole violation. After the officers left with § 87(2)(b), § 87(2)(b) went back to § 87(2)(b)'s bedroom. All of the bedroom doors, which had been closed before officers' arrival, were open. In § 87(2)(b)'s bedroom, the officers had emptied the closet, flipped the mattress, opened plastic bins with drawers, and left the closet door open. § 87(2)(b) did not go into the other bedrooms, but was able to see from the hall that the closets had been emptied, the mattresses were flipped, and dresser drawers were opened. Many of the couch cushions in the living room had been flipped. Nothing was out of place in the kitchen or bathroom. § 87(2)(b) left the apartment and did not return **(Board Review 01).**

§ 87(2)(b) testified that Det. Silverio remained with § 87(2)(b) and § 87(2)(b) while the officers and Parole Officer Allen searched the apartment. An officer, who § 87(2)(b) could not recall, attempted to get into § 87(2)(b)'s room which was locked. § 87(2)(b) explained that the room did not belong to him, but the officer did not believe him and said that he saw § 87(2)(b) exit the room. An officer, who § 87(2)(b) could not recall, took § 87(2)(b)'s keys, § 87(2)(b) did not recall from where, and unsuccessfully attempted to unlock the door. An officer, who § 87(2)(b) could not recall, used a butter knife to open both of the locked doors and went into the rooms. § 87(2)(b) and § 87(2)(b) were in the area between the kitchen and living room, and could not see inside of the rooms or where the officers searched. Officers searched the living room and kitchen. § 87(2)(b) could not recall the areas that the officers searched but recalled that an officer took the cushions off the couch, moved the couch away from the wall, and opened kitchen cabinets. § 87(2)(b) was removed from the apartment and did not see into the bedrooms **(Board Review 02).**

§ 87(2)(b) testified that neither she nor her children were home during this incident. Upon returning home § 87(2)(b) saw that her apartment was in a mess. Her couch cushions were removed and on the floor. Her bedroom door was kicked in causing the door, near the handle, to be cracked. § 87(2)(b)'s closet was open, and her clothes, which were on a chair and on her bed, were on the floor. Additionally, in her son's room, the dresser was pulled away from the wall and the drawers were open. § 87(2)(b) called NYCHA but they never came to repair the damage **(Board Review 03, 04).**

A NYCHA repair order from September 24, 2020 shows that repairs were made to the apartment's front door. The repair order does not mention any damage to the interior bedroom doors **(Board Review 11).**

Parole Officer Allen retired from service and thus was unavailable to the investigation **(Board Review 08).**

Det. Silverio testified that after § 87(2)(b) was in custody the officers cleared the apartment to make sure that there were no other individuals hiding that could harm them. Det. Silverio knew that § 87(2)(b) had a violent arrest history and was a known gang member, which contributed to the decision to clear the apartment. Det. Silverio searched the room that § 87(2)(b) had been standing in front of, directly at the end of the hallway. The room was small. Det. Silverio lifted up the mattress and looked in the closet for people hiding. He did not recall searching anywhere else, and did not open any drawers, cabinets, or do any further searches. Once the room was cleared he went back to § 87(2)(b). Det. Silverio was sure that other officers cleared the other rooms, but he did not witness it and he only cleared the one bedroom. Det. Silverio did not open any locked doors, did not recall any rooms being locked, and did not have § 87(2)(b)'s keys and attempt to open any doors, nor did he recall any other officer doing so. Det. Silverio was shown the NYCHA work order which stated that the hinges, striker, and cylinder of the main door were repaired. Det. Silverio did not know why the repair was necessary, and maintained that the door was not damaged by him or the other officers **(Board Review 05)**.

Det. Hoppinthal testified that after § 87(2)(b) was in custody, Det. Hoppinthal waited with § 87(2)(b) while Det. Silverio conducted a secondary search around the apartment to look for hiding individuals that could potentially harm them. Det. Silverio briefly went into one of the bedrooms – he could not see where Det. Silverio was searching from where he was standing. Det. Hoppinthal assumed that the whole apartment was searched for individuals, but he did not see officers search any other locations. Warrant officers regularly do secondary searches as procedure. Det. Hoppinthal did not recall if there were locked doors in the apartment. Det. Hoppinthal did not recall if any officers were in possession of § 87(2)(b)'s keys. Det. Hoppinthal did not recall any officer prying open any locked doors, moving any clothing, going into any drawers, or flipping over any beds and he did not do so. None of the doors, including the internal doors, were damaged. Det. Hoppinthal was shown the NYCHA work order which stated that the hinges, striker, and cylinder of the main door were repaired. Det. Hoppinthal did not know why the repair was necessary, and maintained that the door was not damaged by him or the other officers **(Board Review 06)**.

Det. Heredia testified that he did not recall if officers searched the apartment. He did not recall any couch cushions being removed or cabinets or drawers being opened, and did not do so himself. Det. Heredia did not recall if a secondary search was conducted. Det. Heredia did not recall there being any locked doors in the apartment nor did he recall officers prying open any doors. Det. Heredia stated that officers will ask occupants for keys to locked doors while conducting a secondary search. If the keys were not available, and the officers suspected that an individual was in the room and wanted to look in the room for an individual, Det. Heredia would call his supervisor for instructions. Det. Heredia did not recall there being damage to any of the doors in the apartment **(Board Review 07)**.

A protective sweep is a quick and limited search of premises, incident to an arrest and conducted to protect the safety of police officers or others. It is narrowly confined to a cursory visual inspection of those places in which a person might be hiding. Maryland v. Buie, 494 U.S. 325 (1990) **(Board Review 15)**.

§ 87(2)(b) testified that the officers and Parole Officer Allen conducted searches of the apartment. After the incident concluded, she went into the bedrooms and saw that officers had went into bins and drawers. § 87(2)(b) testified that the officers opened up kitchen cabinets and moved the couch away from the wall, but could not recall additional details of the search. § 87(2)(b) testified that upon returning home to the apartment, that her clothes were moved off her bed and her son's dresser drawers were open. However, Det. Silverio and Det. Hoppinthal both testified that a

secondary search was conducted of only areas where an individual could hide, and each officer denied opening any drawers or cabinets. Additionally, neither Det. Silverio, Det. Hoppinthal, nor Det. Heredia recalled there being locked doors in the apartment. Det. Silverio denied that any of the doors were damaged and Det. Hoppinthal and Det. Heredia did not recall any doors being damaged. Lastly, the NYCHA work order does not show any repairs to interior doors.

§ 87(2)(g)

Given the above, it is recommended that **Allegations G, H, I, and J** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) has been a party.
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**Board Review 16**).
- Det. Silverio has been a member of service for 15 and has been a subject in 15 additional CCRB complaints and 46 allegations, of which four were substantiated.:
 - 201201095 involved substantiated allegations of Abuse – Frisk and Abuse - Stop. The Board imposed charges. Det. Silverio was found guilty at trial and the NYPD imposed a forfeit of three vacation days.
 - 201905329 involved substantiated allegations of Abuse – Failure to provide RTKA card. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - 201905365 involved substantiated allegations of Abuse – Failure to provide RTKA card. The Board recommended instructions and the NYPD imposed instructions.
 - § 87(2)(g)
- Det. Hoppinthal has been a member-of-service for 16 years and this is the first CCRB complaint to which he has been a subject.
- Det. Heredia has been a member of service for 15 and has been a subject in 11 additional CCRB complaints and 26 allegations, of which one was substantiated.:
 - 201905329 involved substantiated allegations of Abuse – Failure to provide RTKA card. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On February 23, 2022, an inquiry was filed with the New York City Comptroller's Office to locate a Notice of Claim for § 87(2)(b) and § 87(2)(b). The results are pending and will be added to the case file upon receipt (**Board Review 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 06

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 2/24/2022
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Pena 2/25/2022
Signature Print Title & Name Date